Articles 19(1)(f), 25, 26 and 27 of the Constitution. The central provisions of the Act were struck down by the Madras High Court in 1951 as being unconstitutional, and the judgment of the High Court was largely upheld by the Supreme Court in 1954 in its landmark Shirur Math Judgment.

Ironically, the very same provisions of the 1951 Madras HRCE Act, which were struck down by the Supreme Court as unconstitutional in 1954, were reintroduced in sum and substance in the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959, which is still in force to date. These reintroduced provisions, along with the corresponding provisions of the HRCE legislations of Andhra Pradesh and Puducherry, are currently under challenge before the Supreme Court in a Writ Petition filed in 2012 by the late Swami Dayananda Saraswathi, founder of Arsha Vidya Gurukulam. Clearly, the Indian State in general has no qualms or compunctions in circumventing or contravening the verdict of even the highest court of the land when it comes to Indic religious institutions.

This is but one of the examples of the manner in which concepts, such as ‘secularism’ and ‘equality’, have played out in so-called independent, decolonised Bharat—to the extreme detriment of its indigenous consciousness. This is in stark contrast to the Christian secularism of Europe which protects Christian institutions from State interference. In other words, the coloniality of the Indian State is evidenced by the fact that as opposed to preserving and respecting the space of Indic consciousness, which would have been consistent with the policy of Christian toleration and secularism of the coloniser that accorded primacy to Christianity, the Indian State acts as the successor of the coloniser in its stepmotherly treatment of native consciousness. Consequently, non-Indic institutions and practices enjoy better protection from State interference than their Indic counterparts. This is supported by the fact that the Indian State has enacted at least 15 Hindu-specific legislations that enable State control and facilitate State entrenchment in Hindu institutions. Clearly, this is attributable to the Indian State’s embracing of the colonial assumption that the ‘Hindoo’ is corrupt, debauched and backward, especially if Brahmin, and therefore, such institutions must be under State control in order to ‘reform’ them.

Coming back to the Supreme Court’s Shirur Math Judgment in the context of the ERP test, it continues to be the ruling precedent on the interpretation of religious versus secular under Article 25(2)(a) of the Constitution to date, which led to the formulation of the Test. At this